

Request for Review

Access to Information Act (Alberta) · ADSB Edition – No Response, Version 1.1, September 2026 · Classification: Public

This is a fillable working copy of the OIPC's Request for Review Form under the Access to Information Act. It opens and fills on any phone, tablet, or computer. It is **NOT** an official OIPC or Government of Alberta form. The official form is at oipc.ab.ca. Where this edition and the official form differ in wording, the official form governs. Not legal advice. **This edition is for the most common case: you asked for your AISH or ADAP file and heard nothing.** Some answers are filled in for you. Change anything that does not fit.

WHAT THIS FORM IS FOR

This form asks the Information and Privacy Commissioner of Alberta to review what a public body did with your access to information request. It is the step after the request. You do not use it to ask for records. You use it when you asked for records and something went wrong.

It goes to the Office of the Information and Privacy Commissioner (OIPC), which is independent of the government. **There is no fee.**

YOU CAN ASK FOR A REVIEW IF ANY OF THESE HAPPENED

- You got a response, but you disagree with what was removed.
- You believe records exist that were not included. Before coming to the OIPC on this ground alone you must first ask the public body to fix it and give them at least 30 business days. The OIPC will return the form if you have not.
- You got no response and the 30 business day limit has run out, or an extension the public body took has run out.
- Your request was declared abandoned or disregarded.
- You dispute a time extension the public body took.
- You dispute fees charged or estimated, or a fee waiver was refused.

SILENCE IS A REFUSAL

Under section 13(2) of the Access to Information Act, a failure to respond within the time limit is treated as a decision to refuse access. You do not have to keep waiting, and you do not have to talk anyone into replying. Once the period has passed you are holding a refusal, and a refusal can be reviewed. That is the No Response ground on page 6 of this form.

EXPEDITED INQUIRY, AND THE WORD THAT MATTERS

An expedited inquiry is a faster process. The OIPC issues a decision relatively quickly, the public body is required to give the OIPC a submission explaining itself, and you are not required to write one. You will be offered the chance if you want it. Deadlines for submissions in an expedited inquiry may be short.

The form uses two different words, and the difference is real:

- Abandonment, Disregarded Request, and Time Extension where no records were received: these reviews **WILL** proceed by way of an expedited inquiry.
- No Response, a deemed refusal: this **MAY** proceed by way of an expedited inquiry, in certain circumstances.

So a deemed refusal can go the fast route. It does not automatically. Tick the expedited box under No Response anyway, because without it your intent to proceed to inquiry under section 62(4) is not on the record.

YOUR DEADLINE

60 business days from being notified of the decision, act or failure to act. The Commissioner may extend that by up to 30 more business days if you explain the delay.

Business days exclude Saturdays, holidays and the Government of Alberta Christmas closure. Sundays count as holidays. A deemed refusal is silence, so there is no notification event to start the clock. Say so on the form if you are filing late.

BEFORE YOU START, GATHER THESE

- A copy of your original access request. If you do not have one, there is a box for that.
- The public body's response letter, or the notice declaring your request abandoned, disregarded or extended.
- The file number the public body used. It is usually on their correspondence.
- The date you submitted the request, and the date they responded, if they did.

How to Fill It Out

Read this once before you start. The things that get forms returned are all avoidable.

THREE RULES THAT DECIDE WHETHER YOUR REVIEW PROCEEDS

1. One submission, complete, with every mandatory attachment.

The OIPC states it will not accept a submission that is deficient or submitted in parts, and that missing required documentation will result in the form being returned without a review. Gather everything first, then send once.

2. Fifteen pages, including this form.

Submissions should not exceed 15 pages in total, and the OIPC says it enforces this. Send what is relevant, not everything you have. If they need more they will ask.

3. Do not attach the records you received.

Attach your access request and the public body's response letter. Do not attach copies of the released records themselves.

SECTION BY SECTION

Section 1A – you (page 3)

Fill this in if you made the access request yourself, whether personally or in your role at an organization. Give a phone number you will answer. The OIPC states its preferred method of contact is phone, and that a file may not be opened or may be discontinued if calls are not returned. Give an email address too.

Section 1B – acting for someone else (page 4)

Only if you are filing for another person. Tick your authority, and be ready to produce the documentation afterward. If you have written authorization from the person, attach it.

Section 2 – what you want reviewed (pages 5 to 7)

Name the public body and the file number from their correspondence. Tick only the review types that apply. Each type lists its mandatory attachments directly underneath. The two date fields and the delay explanation are on page 6.

Section 3 – acknowledgement and signature (page 7)

Three confirmations and your signature. Typing your name counts as your signature.

THE ONE THAT CATCHES PEOPLE

Section 59(1) requires the written request for review to be delivered to the Commissioner AND to the head of the public body. Sending it only to the OIPC is not enough.

Keep a record that you sent it to the public body. A copy of this completed form, sent to them, is what shows you made a written request.

WHAT THE OIPC CANNOT DO FOR YOU

It cannot award money or issue fines. It cannot discipline or fire anyone. It cannot change a benefit or penalty decision made by another body, including AISH, ADAP, Workers' Compensation, Maintenance Enforcement or the Ombudsman. It is not an advocate and does not represent you, or the public body.

A review is about how your access request was handled. It is not an appeal of the underlying decision about your benefits.

IF YOU GET STUCK

The OIPC answers questions about its own form: complaint_review@oipc.ab.ca, 780-422-6860, or toll free 1-888-878-4044, during business hours.

Section 1A – About You

Complete this section if you made the access request yourself, or as part of an organization.

If you are requesting the review for someone else, leave this section blank and go to Section 1B on page 4.

☐ I am requesting the review for myself.

☐ I am requesting the review as part of an organization.

LAST NAME

FIRST NAME AND INITIAL

NAME OF ORGANIZATION REQUESTING THE REVIEW (IF APPLICABLE)

MAILING ADDRESS

UNIT / SUITE

CITY

PROVINCE

COUNTRY

POSTAL CODE

AB

Canada

PHONE NUMBER

EMAIL

OK TO LEAVE A MESSAGE?

☐ Yes

☐ No

The OIPC will not leave details in a message. They will identify themselves, say who the message is for, and ask for a call back.

WHY THE PHONE NUMBER MATTERS

The OIPC states that phone is its preferred way to communicate about a review, and that if calls are not returned promptly a file may not be opened or may be discontinued. If you cannot manage phone calls, name an agent to represent you in Section 1B rather than leaving it to chance.

ABOUT YOUR NAME

The OIPC states it will not share your name with anyone outside its office unless you consent, it is necessary to conduct the review, or it is otherwise authorized by law. Note that the public body will receive a copy of this completed form and its attachments under section 60, so the public body will know who is asking.

Section 1B – Acting for Someone Else

Only complete this section if you are filing this review on behalf of another person.

Are you a lawyer or agent? Has an individual authorized you to act on their behalf? Are you representing a minor, do you have power of attorney, are you acting under a personal directive, are you a guardian or trustee, or are you acting for someone who has died?

☐ **Yes** – complete this section and be ready to provide documentation as requested below.

☐ **No** – skip to Section 2 on page 5.

YOUR INFORMATION AS THE REPRESENTATIVE

LAST NAME

FIRST NAME AND INITIAL

ORGANIZATION

MAILING ADDRESS

UNIT / SUITE

CITY

PROVINCE

COUNTRY

POSTAL CODE

PHONE NUMBER

EMAIL

OK TO LEAVE A MESSAGE?

☐ Yes

☐ No

YOUR AUTHORITY – TICK THE ONE THAT APPLIES

Be prepared to provide documentation to support your authority after you submit this form. You do not send it with the form unless the box says to.

☐ The person is deceased and I am the personal representative and my request relates to the administration of the estate.

☐ I am a guardian or trustee under the Adult Guardianship and Trusteeship Act and this review relates to the exercise of the right or powers as it relates to my duties.

☐ I am an agent under a personal directive pursuant to the Personal Directives Act, and the directive authorizes me to do so.

☐ I have power of attorney granted by the individual, and the exercise of the right or power is related to those conferred on me as the power of attorney.

☐ The individual is a minor, and I am the guardian of the minor.

AGE OF MINOR

☐ I have written authorization from the individual to act on their behalf. Attach it, or attach other documentation supporting your authority.

PERSON YOU ARE ACTING ON BEHALF OF

LAST NAME

FIRST NAME

Section 2 – What You Want Reviewed

The public body, the file, and the grounds. Tick only the review types that apply.

PUBLIC BODY INVOLVED

Assisted Living and Social Services

FILE NUMBER (IF APPLICABLE)

I requested access to information and I request the following be reviewed:

☐ **ABANDONMENT OF ACCESS REQUEST** (public body decision under ATIA section 10): I received notice from the Public Body that my request has been declared abandoned. I dispute that my access request has been abandoned.

MANDATORY ATTACHMENT: the notice from the public body declaring the request abandoned.

☐ By choosing this box, I understand this will proceed by way of an expedited inquiry and I confirm my intent to proceed to inquiry in accordance with section 62(4).

☐ **DISREGARDED REQUEST** (public body decision under ATIA section 9): I received notice from the Public Body that my request(s) has been disregarded. I dispute the Public Body's decision to disregard my access request(s).

MANDATORY ATTACHMENT: the notice from the public body about its decision to disregard your request.

☐ By choosing this box, I understand this will proceed by way of an expedited inquiry and I confirm my intent to proceed to inquiry in accordance with section 62(4).

☐ **TIME EXTENSION** (public body decision under ATIA section 16): I received notice from the Public Body that the response due date for my request has been extended. I dispute the need for the extension.

MANDATORY ATTACHMENT: the notice from the public body regarding the time extension. Then choose one of the two boxes below.

☐ I have not received any records. By choosing this box, I understand this will proceed by way of an expedited inquiry and I confirm my intent to proceed to inquiry in accordance with section 62(4).

☐ I have received records.

☐ **SEARCH:** The search conducted for records was not adequate or failed to locate records believed to exist.

MANDATORY ATTACHMENTS: your access request, and the response from the public body. Optional: documentation if the scope of the request changed and was agreed.

☐ I have asked the Public Body to try and resolve the search issue and this issue is not resolved. If yes, attach the documentation.

☐ No, I have not asked the Public Body to resolve the search, for the following reason(s):

Character limit: 500

If you are asking for a review solely on the adequacy of the search, you must first ask the public body and allow at least 30 business days for a reply. The OIPC will return the form if this has not been done.

Section 2 – Continued

Fees, refused access, no response, and your dates.

FEES

☐ I received notice that fees apply. I question how the fees have been calculated.

MANDATORY ATTACHMENT: the fee estimate.

☐ I received notice that fees apply. I asked the Public Body to waive the fees. The Public Body has refused my fee waiver request.

MANDATORY ATTACHMENTS: your fee waiver request, and the response from the public body.

REFUSED ACCESS

☐ The Public Body responded to my request and I have been refused access to all or part of the records requested.

☐ I dispute the decision to withhold information that I requested.

☐ If applicable, I dispute the decision to neither confirm nor deny the existence of the record(s) I requested.

MANDATORY ATTACHMENTS: your access request, and the response from the public body. Optional: documentation if the scope changed and was agreed.

NO RESPONSE – THE DEEMED REFUSAL

☒ **The time limit for responding to my request has expired and I have received no reply.**

☐ I do not have a copy of the access request.

☐ By choosing this box, I understand this may proceed by way of an expedited inquiry and I confirm my intent to proceed to inquiry in accordance with section 62(4).

ATTACH your access request if you have it. If you do not, tick the box above. The OIPC says the response letter matters more, and encourages you to ask the public body for a copy of your request.

YOUR DATES

WHAT DATE DID YOU SUBMIT YOUR REQUEST TO THE PUBLIC BODY? WHAT DATE DID THE PUBLIC BODY RESPOND?

Leave the second date blank if they never responded. That blank is the point.

IF YOU ARE FILING LATE, EXPLAIN THE DELAY

Character limit: 1,000

Needed only if you are filing more than 60 business days after the notice. Say why the Commissioner should exercise her discretion to extend the time by up to 30 additional business days.

What You Want to Happen

And the three confirmations the Act requires before you sign.

How do you think the OIPC may assist you? Describe the result or outcome you seek. Is there something you expected to receive from the public body and did not? Are you concerned with specific sections or reasons the public body gave to justify removing information? Explain.

I submitted an access request to Assisted Living and Social Services on [DATE] for a copy of my [AISH / ADAP] file. The 30 business day time limit to respond has passed. I have received no records, no response, and no notice that the time was extended. Under section 13(2) of the Access to Information Act, this is a refusal of access.

I am asking the Commissioner to review this deemed refusal and to order the public body to respond to my request and provide my records without further delay.

[Optional: add why the timing matters to you, for example an appeal, a reapplication, or another deadline. Delete this line if not needed.]

Character limit: 2,000

If that is not enough space you may attach further information, to a maximum of 15 pages in total including this form.

SECTION 3 – ACKNOWLEDGEMENT

Before you send this form, check that you have attached the documentation each ticked ground requires. The OIPC states that failure to provide required supporting documentation will result in the form being returned without a review, and that it will not accept a submission that is deficient or submitted in parts. **Do not attach copies of the records you received from the public body.**

Section 59(1) requires that a written request for review must be delivered to the Commissioner and to the head of the Public Body. I confirm that I will promptly deliver a written request for review to the head of the Public Body.

Section 60 requires the Commissioner to provide a copy of my completed form and all attachments to the Public Body. I confirm that I understand this form and attachments will be provided to the Public Body.

I acknowledge that I am required to keep my contact and address information up to date and, if I fail to do so, this review may not proceed. If my contact information changes I must complete a Change of Contact and/or Address for Service form. Any person I authorize to act on my behalf must do the same.

SIGNATURE – TYPING YOUR NAME CONFIRMS ACCEPTANCE

DATE

Where This Goes

Two deliveries, not one. Both are required.

DELIVERY 1 – THE COMMISSIONER

By email (preferred)

complaint_review@oipc.ab.ca

Send the completed form and every attachment together, in one email. Keep the sent copy.

By mail

Office of the Information and Privacy Commissioner

410-9925 109 Street NW, Edmonton AB T5K 2J8

Send tracked or registered if you can, and keep the receipt.

DELIVERY 2 – THE HEAD OF THE PUBLIC BODY

Section 59(1) requires the written request for review to be delivered to the Commissioner AND to the head of the public body. If you only send it to the OIPC, you have not met the requirement.

Send the same completed form to the public body you named in Section 2. A copy of this form is what shows you made a written request for review. Keep a record that you sent it – the email, or the mailing receipt.

For Government of Alberta departments, the access to information contact is on the correspondence you received from them. If you cannot find it, the OIPC will tell you who the head of that public body is.

KEEP THESE

- A copy of the completed form as you sent it.
- Proof of both deliveries – the sent emails, or the mailing receipts.
- The date you sent it, against the 60 business day deadline.
- Every attachment you included, in the order you listed them.

QUESTIONS ABOUT THE FORM

The OIPC answers questions about its own process: **complaint_review@oipc.ab.ca**, **780-422-6860**, or toll free **1-888-878-4044**, during business hours.

WHAT NOT TO DO

Do not send this completed form to the campaign. The campaign email is for advocacy questions only. We cannot file a review on your behalf, and your personal file information should not be sitting in a third party's inbox. If you have a question about how to fill the form out, rather than where to send it, write to us with none of your personal information attached. We are glad to help with the how.

This is an ADSB plain-language edition of the OIPC's Request for Review Form under the Access to Information Act, September 2026 revision, rebuilt for readability and to open on any device. It is not an OIPC publication and is not endorsed by the OIPC. The official form is at oipc.ab.ca. Where this edition and the official form differ in wording, the official form governs. Not legal advice.